

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: September 10, 2026

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> , and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50	<i>Cordova vs. Elite Framing Crews, LLC</i>	The motion by Ogletree, Deakins, Nash, Smoak & Stewart P.C., to be relieved as counsel of record for Cristobal Castro, is GRANTED. Counsel is ordered to submit a completed proposed order with the client's current/last known address and telephone number for the Court's review. Upon the court's signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. Ogletree, Deakins, Nash, Smoak & Stewart P.C. will be relieved as counsel of record for Cristobal Castro, effective upon the filing of the proof of service of the signed order upon the client and all parties. Ogletree, Deakins, Nash, Smoak & Stewart P.C. is ordered to give notice of the ruling.
51	<i>Escudero vs. System Pavers, LLC</i>	<i>Continued to 11/20/26</i>
52	<i>Gary D. Nitzkin, P.C. vs. Horowitz</i>	Defendant Brian Horowitz's ("Defendant") Demurrer to the Second Cause of Action of Plaintiff Gary D. Nitzkin, P.C. dba Credit Repair Lawyers of America's ("Plaintiff") First Amended Complaint is overruled. "The elements of intentional misrepresentation 'are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage.'" (<i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1245, citing <i>Chapman v. Skype Inc.</i> (2013) 220 Cal.App.4th

	217, 230–231.) “To withstand a demurrer, the facts constituting every element of the fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings.” (<i>Goldrich v. Natural Y Surgical Specialties, Inc.</i> (1994) 25 Cal.App.4th 772, 782.) Here, Defendant contends that, the allegations of undisclosed facts have “no causal connection whatsoever with any of the claims in the Federal Court actions filed by Nitzkin which do not include any prayer for damages as to the amounts in the cashier’s check involved in the transaction.” (Dem. at p. 4.) However, Plaintiff is alleging that, “when Horowitz’s misrepresentations about the Union Bank payments came to light, it became clear that Horowitz did engage in suspected fraud activity such that BOA had the right, or basis, to report him to the CHEX System, and Horowitz lost all credibility in the underlying lawsuit.” (ROA 187 [Opp’n at p. 5].) The Court finds Plaintiff has sufficiently alleged a misrepresentation by Defendant; Defendant’s knowledge of the falsity of the representation; Defendant’s intent to induce reliance; Plaintiff’s actual and justifiable reliance, and damages. (See FAC at ¶¶ 14-28.) In light of the ruling on the demurrer, Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint is also denied.
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		Defendant shall answer the FAC within 10 days of the notice of ruling. Plaintiff shall give notice of the ruling.
53	<i>Jhumra vs. Orange County Global Medical Center, Inc.</i>	Defendant Neurovascular and Spine Associates, APC's demurrer to the 6th cause of action in Plaintiffs' First Amended Complaint is sustained without leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carnegie</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) Plaintiffs' 6th cause of action is for dependent adult abuse. Welfare & Institutions Code section 15610.07 defines abuse of an elder as: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment

		with resulting physical harm or pain or mental suffering. (2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering. (3) Financial abuse, as defined in Section 15610.30. Neglect “requires a caretaking or custodial relationship that arises where an elder or dependent adult depends on another for the provision of some or all of his or her fundamental needs.” (<i>Winn v. Pioneer Med. Group, Inc.</i> (2016) 63 C4th 148, 160.) Health care providers who engage in “simple professional negligence” are not subject to the heightened remedies available under Welf. & Inst. C. § 15657 (general damages, attorney fees and costs). (<i>Covenant Care, Inc. v. Super. Ct.</i> (2004) 32 Cal.4th 771, 781, 784; <i>Carter v. Prime Healthcare Paradise Valley LLC</i> (2011) 198 Cal.App.4th 396, 405; <i>Worsham v. O'Connor Hosp.</i> (2014) 226 Cal.App.4th 331, 337.) In the First Amended Complaint, Plaintiffs allege that on 7/14/24, Plaintiff Khusro Jhumra presented to the Emergency Department at Orange County Global Medical Center. While receiving treatment, it was discovered that he “had a ruptured left middle cerebral artery aneurysm that resulted in a moderate mass effect and midline shift of 1.2 cm – a bona fide emergency.” Plaintiffs allege that Defendants failed to timely treat Plaintiff’s condition -
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	because they did not have the necessary equipment or a neurosurgeon on call - resulting in severe and permanent brain injury. (FAC, ¶ 14.) It is clear from reading the First Amended Complaint that despite Plaintiffs’ allegations in ¶¶ 62 and 63 that Plaintiff was a “dependent adult”, Plaintiffs’ claims are based on medical negligence. Specifically, Plaintiffs’ claims regarding his visit to the Emergency Department due to a brain aneurysm do not support a “substantial caretaking or custodial relationship,” but rather potential medical negligence. (See <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 152.) The Court in <i>Winn</i> stated “nothing in the legislative history suggests that the Legislature intended the Act to apply whenever a doctor treats any elderly patient. Reading the act in such a manner would radically transform medical malpractice liability to the existing scheme.” (<i>Id.</i> at 163) This is the second time that Plaintiffs have attempted to unsuccessfully plead an elder abuse claim. Plaintiffs do not allege anything beyond a single day of treatment at the Emergency Department of a hospital. Under these facts, it does not seem likely that Plaintiff can plead a valid elder abuse claim. Therefore, the demurrer is sustained without leave to amend. Defendant Neurovascular and Spine Associates, APC shall give notice.
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54	<i>Neach vs. Pacheco</i>	The motion by Defendant/Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) and Defendant Pacheco & Neach, PC (“Law Firm”) (collectively, “Defendants”) for an order granting Defendants’ motion for summary judgment or, in the alternative, motion for summary adjudication against Plaintiff Brian Neach (“Plaintiff”) is DENIED. As an initial matter, the Court notes Defendants did not identify the issues for summary adjudication in Defendants’ notice of motion or Separate Statement. (Notice of Motion; Separate Statement.) Defendants’ notice states Defendants are alternatively seeking summary adjudication but does not clearly identify the issues. Instead, Defendants’ notice raises four grounds in support of Defendants’ motion for summary judgment. Defendants’ Separate Statement rephrases these four grounds as four issues in support of Defendants’ motion for summary judgment and/or summary adjudication. “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).) Defendants did not comply with Rule 3.1350. The Court has discretion to deny a motion for summary judgment when the moving party fails
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	to comply with the separate statement requirement. (<i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118.) The statute governing the format of summary judgment moving papers is permissive, not mandatory. (<i>Brown v. El Dorado Union High School Dist.</i> (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (<i>Id.</i>, citing <i>Fleet v. CBS, Inc.</i> (1996) 50 Cal.App.4th 1911, 1916, fn. 3.) Although Neach takes issue with the number of what Neach describes as immaterial facts in Defendants’ Separate Statement, Neach did not oppose the motion on the ground that the issues were not sufficiently identified in the notice of motion or that the issues were not repeated verbatim in the Separate Statement. The Court exercises its discretion to consider the merits of Defendants’ motion for summary adjudication despite this procedural deficiency. <u>General legal authority</u> In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of
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	material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (<i>Clark v. Baxter Healthcare Corp.</i> (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not
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	owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; <i>see Sheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) To meet this burden, the
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	plaintiff must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) <u>Merits</u> The four grounds as set forth in the notice of motion are: 1. Defendants met and conferred with Neach pursuant to the written agreement which bars Neach's claims for breach of the written agreement, unjust enrichment, quantum meruit, and accounting. 2. Any oral agreement that Neach claims he had was superseded by the written agreement, is barred by the parole evidence rule and bars Neach's claim for breach of any oral agreement. 3. The written agreement shows that there was no promise to pay Neach 50% of the proceeds from the Bridges matter and bar Neach's claim for promissory fraud. 4. Defendants had no fiduciary obligations to Neach because Neach released any obligation to be paid by the Firm which bars Neach's claim for breach of fiduciary duty. The issues as set forth in Defendants' separate statement are:
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	Issue 1: Defendants Met and Conferred Pursuant to the Separation Agreement Before Neach's Resignation which Bars Plaintiff's Claims for Breach of the Separation Agreement, Unjust Enrichment, Quantum Meruit and Accounting Issue 2: Any Oral Agreement was Superseded by the Written Terms Bars Plaintiff's Claim for Breach of the Oral Agreement Issue 3: The Written Terms of the Separation Agreement Shows that There was No Promise to Pay Neach with 50% of All Future Proceeds and Bars Plaintiff's Claim for Promissory Fraud Issue 4: Defendants had No Fiduciary Obligations to Neach Which Bars Plaintiff's Claim for Breach of Fiduciary Duty Defendants no longer pursue causes of action that are not at issue in the SAC. (Reply, Page 2, fn. 1.) In addition, because Neach did not bring these causes of action, there is nothing to adjudicate. Accordingly, the motion for summary adjudication as to these two issues is denied. As such, the motion as to issues 2 and 3, relating to a cause of action for breach of oral agreement and a cause of action for promissory fraud, is denied. Defendants also appear to change the basis for their motion for summary judgment and/or adjudication as to the remaining causes of action from meet and conferring to the idea that all claims were barred by a release in the December 15, 2022, Amendment to the Shareholder and
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	Operating Agreement. As such, it appears Defendants are abandoning the ground raised in support of issue 1 and against the three causes of action alleged in the SAC. The Court also notes issue 1 includes a cause of action for breach of the Separation Agreement, which is not alleged in the SAC. As such, there is nothing to adjudicate with respect to that claim and the motion may be properly denied on that ground as well. Furthermore, this new ground was not raised in the initial papers. Defendants did not provide proper notice of this ground to Neach. Even if Defendants intend to proceed with summary adjudication of the first issue, the motion is also denied because Neach raised a triable issue of material fact as to whether Pacheco and Neach agreed to split the fees on the Bridges matter. (Defendants’ Material Fact [“DMF”] No. 16; Neach Decl., ¶¶ 7, 20, 27(a)-(d), 28; Exhibits H, I and J.) In addition, the parties dispute whether the Firm had to pay an excess of \$100,000 to vendors because Neach failed to pay them. (DMF No. 38; Neach Decl., ¶ 51k.) The separate statement “effectively <i>concedes</i> the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in your separate statement, the motion must be denied!” (<i>Insalaco v. Hope Lutheran Church of West Contra Costa County</i> (2020) 49 Cal.App.5th 506, 521, citing to <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 252 and Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2009) [¶] 10:95.1.)
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Issue 4: Defendants had No Fiduciary Obligations to Neach Which Bars Plaintiff's Claim for Breach of Fiduciary Duty

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, its breach, and damage proximately caused by that breach.” (*Knox v. Dean* (2012) 205 Cal.App.4th 417, 432.)

“[B]efore a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law.” (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 632.) A “mere contract or a debt does not constitute a trust or create a fiduciary relationship.” (*Id.*, at 634.)

A fiduciary relationship is “any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter’s knowledge or consent.” (*Wolf v. Superior Court* (2003) 106 Cal.App.4th 625, 29.) Examples of fiduciary relationships include: principal and agent; real estate broker/agent and client; stockbroker and customer; attorney and

	client; partners; joint venturers; corporate officers and directors, on the one hand, and the corporation and its shareholders, on the other hand; husband and wife, with respect to the couple's community property; controlling shareholders and minority shareholders; trustee and trust beneficiary; guardian and ward; pension fund trustee and pensioner beneficiary; executor and decedent's estate; and trustee and trust beneficiaries. (<i>Oakland Raiders</i>, 131 Cal.App.4th at 632-633.) Defendants met their initial burden to show that a traditional fiduciary relationship did not exist between Neach and Defendants. (DMF No. 136, 141-152, 156-162, 164, 169, and 173-179.) However, “[w]hen an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party. Thus, the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust.” (<i>Johnstone v. State Bar</i> (1966) 64 Cal.2d 153, 155-156.) Here, Neach raises a triable issue of material fact as to whether the Law Firm received money belonging to Neach. (Neach Decl., ¶¶ 20, 26, 27, 34, and 48, Exhibits H, I, J, and M.) Neach also disputes a number of Defendants’ material facts, including Defendants’ contention that Neach was not significantly involved in the Bridges trial and had little obligations during trial, and whether the parties anticipated requesting a lodestar and whether Neach’s initial draft included a request
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		for a multiplier (DMF No. 15, 153, and 162; Neach Decl., ¶¶ 14, 15, and 24, Exhibit F.) Accordingly, the motion as to this issue is denied. For the reasons set forth above, Defendants’ motion for summary judgment is denied. Neach shall give notice.
55	<i>Nguyen vs. Nguyen</i>	Plaintiff Victoria Nguyen’s (“Plaintiff”) Motion for Terminating and Monetary Sanctions against Defendant Khoa Dang Nguyen (“Defendant”) is granted in part and denied in part. The request for terminating sanctions is denied without prejudice. The requests for monetary sanctions and for other relief as the Court deems appropriate are granted. CCP section 2023.030 outlines the various sanctions that may be imposed “against anyone engaging in conduct that is a misuse of the discovery process,” including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, “after notice to any affected party, person, or attorney, and after opportunity for hearing.” (Code Civ. Proc., § 2023.030.) Failure to respond to an authorized method of discovery is a misuse of the discovery process. (Code Civ. Proc. § 2023.010, subd. (d).) So, too, is disobeying “a court order to provide discovery.” (Code Civ. Proc. § 2023.010, subd. (g).) “Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to

	make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145, emphasis in original.) Here, the Court finds the request for a terminating sanction is premature and not supported by persuasive evidence that Defendant has willfully disobeyed the 10/24/25 discovery order or the 10/17/25 order for payment of discovery sanctions. Many courts have found that, absent evidence of a <i>willful</i> failure to comply with a court order, terminating sanctions are also not appropriate. (See <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496 [terminating sanctions “are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party,” but justified when “record demonstrates repeated violations of stipulations and court orders, a forged document offered as true, and deliberate destruction of evidence pertinent to exposing that fact”].) Although the proofs of service reflect that Plaintiff has properly served papers by mail on Defendant, there is no indication that Plaintiff’s counsel has engaged in any further meet and confer (e.g., via phone) to determine whether Defendant is <i>willfully</i> failing to comply with the discovery orders. As such, the Court denies the request for the “ultimate” sanction, but finds it is appropriate to issue an evidentiary sanction in lieu thereof. The Court orders that Defendant shall be barred from producing any documents, at trial, that would have been responsive to Plaintiff’s
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		inspection demands, unless those documents are produced within 15 days of the notice of this ruling. (Code Civ. Proc., § 2023.030, subd. (c).) Additionally, in connection with this motion, Plaintiff is awarded reasonable monetary sanctions in the amount of \$900 against Defendant. The monetary sanctions are payable within 30 days to Plaintiff's counsel, Directions Law, Inc. (Code Civ. Proc., § 2023.030, subd. (a).) Plaintiff shall give notice of the ruling.
56	<i>PC Group Retail, LLC vs. @Phans-Pacific City, Inc.</i>	Defendants/Cross-Complainants @Phans-Pacific City, Inc.'s, Thomas Phan's and Susie Phan's motion for leave to file a First Amended Cross-Complaint and a First Amended Answer is granted. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. § 473(a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as

	may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.) Cross-Complainants seek leave to file a First Amended Cross-Complaint adding causes of action for Intentional Misrepresentation, Fraudulent Concealment, Negligent Misrepresentation, and Unfair Competition under Business and Professions Code section 17200, and a claim for punitive damages. As support for these claims, Cross-Complainants state that on 4/16/26, they were finally able to access the July 11, 2024 Sticks & Stones HB, LLC replacement-tenant lease, executed nearly two months before the September 3, 2024 Early Termination Notice was issued. (ROA 133, Alves Decl., ¶ 6.) In opposition, Plaintiff/Cross-Defendant argues that Cross-Complainants fail to show good cause and due diligence, and that granting the motion would result in the pleadings being re-opened, necessitating that the current trial date be vacated. While it does appear that Cross-Complainants waited to serve the discovery that ultimately led to the discovery of the information that supports their additional claims, the record reflects that they promptly moved for leave to amend once the information was accessed. Cross-Complainants' motion complies with CRC, Rule 3.1324(b).
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		Any potential prejudice can be cured by a trial continuance if necessary. Cross-Complainants shall file and serve their First Amended Cross-Complaint and First Amended Answer no later than Wednesday, September 16, 2026, pursuant to the Code of Civil Procedure. Cross-Complainants shall give notice.
57	<i>R & R Life is Amazing LLC vs. Daher</i>	There are several motions on calendar related to this litigation. The tentative rulings as to each of the motions are set forth below. <u>MOTION FOR JUDGMENT ON THE PLEADINGS</u> Defendants Doran Andry, Donte Andry, Life Is Amazing LLC, and Sibannac LLC’s motion for judgment on the pleadings on the second amended complaint (“SAC”) of plaintiffs R&R Life is Amazing LLC and Joseph Dib is granted in part and denied in in part. [ROA ## 1147, 1234.] The motion is granted on all causes of action as to Defendant Donte Andry, purportedly added as Doe 12.] Otherwise, the motion is granted or denied as set forth below. The court will hear from Plaintiffs’ counsel whether they wish the court to grant leave to amend. Defendant Omar Daher’s motion for relief from the 10/10/25 order deeming RFAs admitted by him is granted. [ROA # 1136.]

Facts

Plaintiffs' operative complaint is the SAC, which is directed at eight named defendants and does 1-10.

Plaintiffs' allegations describe a scheme in which Dib was essentially defrauded by Defendant Omar Daher. Defendant Omar promised Plaintiff that if he paid \$700,000 to purchase the Bridgeville Property, pay for the costs of all the required licenses with the Humboldt County for cultivating the Product, pay for the costs of purchasing seeds, fertilization, and transportation of the Product, Plaintiff will get in return the following: (a) title to the Bridgeville Property; (b) \$10 million from the sale of the Product; (c) title to the real property located at 9 Thornwood, Irvine, CA ("Irvine Property") that Defendant Omar represented he owned, but that he had it titled on his friend's name because he was in divorce proceedings with his wife and did not want his wife to know about it; and (d) either a new Mercedes or a Range Rover of Plaintiffs choice that Defendant Omar would purchase with his own funds. [SAC (ROA #686), ¶ 37.]

In furtherance of the oral agreement and relying on Defendant Omar's representations and the grant deed that Omar showed him, Plaintiff established the R & R Life is Amazing LLC so that the title to the Bridgeville Property would be transferred to this LLC. . . . In furtherance of the oral agreement and relying on Defendant's Omar's representations, Plaintiff spent more than \$1.5 million, as follows: (1) the purchase of the

	Bridgeville Property (valued at \$700,000); (2) over \$200,000 to purchase, transfer and/or renew licenses with the Humboldt County for the Bridgeville Property; (3) over \$200,000 to purchase containers to transport the Product; (4) and the rest of the funds to purchase seeds and for fertilization. [SAC, ¶¶ 42-43.] In the course of his dealings with Dib, Defendant Daher invoked the names of a number of other individuals and companies. It appears, however, that Dib himself almost exclusively communicated with Defendant Daher. There is an allegation of one direct communication with defendant Riad Abdulla [SAC, ¶ 59] and a reference to Riad, defendant Hussman Abdullah, and Defendant Daher deceiving Dibs. [SAC, ¶61.] Further, Riad, Hussman, and defendant Doran Andry are alleged to have taken actions in furtherance of the scheme. [SAC, ¶¶ 55-56.] Otherwise, from Plaintiffs' descriptions, Dib dealt with Defendant Daher and Daher was the driver of events. [SAC, ¶¶ 33-67.] After filing the SAC, Plaintiffs added defendants Sibannac LCC as Doe 9 and Donte Andry as Doe 12. [ROA ## 695, 796.] On 12/19/2025, the Court overruled in part and sustained in part K&A's demurrer to Plaintiffs' SAC with 20 days leave to amend as to some causes of action and without leave to amend as to other causes of action. [ROA #1014.] As to the 13 cause of action SAC: the court struck the eleventh and thirteenth causes of action; sustained the
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	demurrer <i>without</i> leave to amend as to the tenth and twelfth causes of action; sustained the demurrer <i>with</i> leave to amend as to the second, fifth, sixth , seventh, eighth, and ninth causes of action; and, finally, overruled the demurrer a to the first, third, and fourth causes of action. Plaintiffs have not filed a third amended complaint (“TAC”) in the time provided by the court, nor have they filed a TAC to date. Plaintiffs’ counsel has stated that Plaintiffs have chosen not to amend. [Dibs Decl. (ROA #1189), ¶ 7.] Previously, Plaintiffs showed Joseph Dib properly served a second set of RFAs on the parties by mail on March 19, 2025, and received no response or request for an extension from Omar Daher. (Monica Dib Decl., ROA No. 849, ¶¶ 5, 6, and 10, Exhibit 1.) No responses were served prior to the hearing on Plaintiff’s motion to deem the RFAs admitted; nor was any opposition filed, even though Omar Daher appeared at the hearing. Plaintiffs’ motion was granted and the RFAs served on Daher deemed admitted. [10/10/25 Minute Order (ROA #976).] Daher now moves for relief from this order with a motion filed on 4/14/26. [ROA #1136.] Legal Standard A statutory motion for judgment on the pleadings may be made at any time except not within 30 days before trial, unless the court otherwise permits. Code Civ. Proc. § 438(e). It functions essentially like a general demurrer. <i>Id.</i>,
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	subsection(c)(1); <i>Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.</i> (2021) 62 Cal.App.5th 583, 598). Accordingly, an MJOP cannot be made or granted on grounds for a special demurrer, such as uncertainty. <i>Barasch v. Epstein</i> (1957) 147 Cal.App.2d 439, 442 (speaking of an MJOP: “Such a motion does not operate as a special demurrer.”). The motion for judgment on the pleadings may be granted with or without leave to amend. Code Civ. Proc. § 438(h)(1); <i>Hendy v. Losse</i> (1991) 54 Cal.3d 723, 742. <i>See Gananian v. Wagstaffe</i> (2011) 199 Cal.App.4th 1532, 1539, 1546-1547 (citing <i>Hendy v. Losse</i> and affirming order sustaining demurrer to petition for writ mandamus without leave to amend were claim was moot). The standard for a general demurrer is the following: A demurrer can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994. Limited to the “four corners” as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant
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	with the nature, source and extent of the claim. <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413. On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967. Discussion <i>Meet and Confer Efforts</i> The court finds Defendants’ meet and confer efforts sufficient under the circumstances. <i>Doe Amendments</i> In their opposition, Plaintiffs argue that filing a doe amendment is sufficient to state a valid claim against the identified doe defendant. [Opp. (ROA #1258) at 5.] But this is only true if the pleading alleges facts as to that doe defendant (individually or among a group) that are sufficient to state a claim. Here, there are necessarily no facts or acts alleged as to Doe 12, Donte Andry, as the SAC does not allege the existence of, or acts by, any Doe 12 defendant. [See SAC, caption and ¶¶ 10-14 (alleging interests of, agency, ratification by, alter ego status of, or participation by Does 1-10).] Accordingly, the MJOP is granted in its entirety as to Donte Andry.
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		<i>Allegations of Agency</i> In large part, Plaintiffs rely on allegations of agency to loop other Defendants into Daher’s alleged conduct. Defendants object that Plaintiffs’ allegations that Daher was acting on Defendants’ behalf, are insufficient. The problem with this argument is that agency is not required to be pleaded by way of specific facts. A simple allegation of agency is sufficient to withstand demurrer on that ground. <i>Skopp v. Weaver</i> (1976) 16 Cal.3d 432, 439 (“We have already noted, however, that an allegation of agency as such is a statement of ultimate fact. Consequently, further allegations explaining how this fact of agency originated become unnecessary.”) In <i>Dones v. Life Insurance Company of North America</i> (2020) 55 Cal.App.5th 665, where the appellate court overturned an order sustaining the demurrer of an insurance company on complaint alleging plaintiff’s decedent’s employer acted as agent for insurance company for purposes of breach of contract claim, the court noted: LINA further argues that Dones only alleged in conclusory fashion that the County acted as LINA's agent and failed to plead facts establishing the existence of an agency relationship. But “[a]n allegation of agency is an allegation of ultimate fact that must be accepted as true for purposes of ruling on a demurrer.
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		[Citations omitted.] The cases LINA offers as holding that a plaintiff “must allege facts demonstrating the principal's control over its agent”—<i>Garlock Sealing Technologies, LLC v. NAK Sealing Technologies Corp.</i> (2007) 148 Cal.App.4th 937, 964, 56 Cal.Rptr.3d 177, and <i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 541, 99 Cal.Rptr.2d 824—do not support the proffered proposition. Both cases discuss requirements for proof of an agency relationship. Neither says anything about pleading requirements to withstand demurrer. (<i>Dones v. Life Insurance Company of North America</i> (2020) 55 Cal.App.5th 665, 685.) Accordingly, for purposes of Defendants MJOP the court must accept Plaintiffs’ allegations that Daher acted on their behalf when alleged to do so. The question remains whether this is sufficient to state any given cause of action against each of them, which is analyzed below. Causes of Action <i>First Cause of Action for Breach of Oral Contract --Against all Defendants, and Does 1-10 inclusive</i> “The elements of a breach of oral contract claim are the same as those for a breach of written contract: a contract; its performance or excuse for nonperformance; breach; and damages.” <i>Stockton Mortgage, Inc. v. Tope</i> (2014) 233 Cal.App.4th 437, 453.
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	An oral contract may be pleaded generally as to its effect because it is rarely possible to allege the exact words. <i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Rutter Guide</i>, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 6-B, 6:132. Here, Plaintiffs allege an oral agreement between themselves and Daher: [I]f Plaintiff (a) paid \$700,000 to purchase the Bridgeville Property, (b) pay for the cost of obtaining, transferring and/or renewing the required licenses with the Humboldt County, and (c) pay for the costs of purchasing seeds, the costs of fertilization, and transportation of the Product, in exchange, Plaintiff would receive the following: (1) title to the Bridgeville Property; (2) title to the Irvine Property; (3) \$10 million from the sale of the Product; and (4) either a Mercedes or a Range Rover vehicle that Defendant Omar would purchase with his own funds. [SAC, ¶ 69.] At the time of these promises Daher was acting on his own behalf and on behalf of Doran Andry. [<i>Id.</i>, ¶ 70.] To persuade Plaintiff to enter into this agreement, K&A – through Daher – promised that if Plaintiff did not get what he was supposed to out of his deal with Daher, then K&A would transfer to Plaintiff title in the Tustin and Buena Park properties. [<i>Id.</i>, ¶ 71.] Plaintiff alleges
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	K&A did not live up to its promise. [<i>Id.</i>, ¶¶ 74, 77.] Plaintiff further alleges that Daher, Andry and K&A breached the oral contract by failing to perform as promises. [SAC, ¶¶ 73, 74, 76, 77, 71.] This is sufficient to state a cause of action against Andry. But there are no allegations as to Life is Amazing. Elsewhere in the complaint Plaintiffs refer to Life is Amazing as “Andry’s LLC,” but there is no express allegation of ownership and no alter ego allegations regarding Andry and Life is Amazing. [SAC, ¶ 38. Compare ¶¶ 17, 26-32.] The MJOP to the first cause of action is denied as to Doran Andry but otherwise granted. <i>Second Cause of Action for Breach of Implied Contract -- against All Defendants, and Does 1-10 inclusive</i> The terms of an express contract are stated in words. The existence and terms of an implied contract are manifested by conduct. Even when an express contract exists, evidence derived from experience and practice can now trigger the incorporation of additional, implied terms. Although implied contractual terms ordinarily stand on equal footing with express terms, they may never be read to vary express terms. See <i>Retired Employees Assn. of OC, Inc. v. County of Orange</i> (2011) 52 Cal.4th 1171, 1178-1179. In order for an implied contract to be enforceable, the terms of the contract must be sufficiently certain so as to provide a basis for determining to what obligations the parties have agreed.
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Weddington Productions., Inc. v. Flick (1998) 60 Cal.App.4th 793, 811.

There is no conduct alleged by any of moving Defendants, including Doran Andry, only the express promise by Daher. This does not really add up to an implied contract. An implied contract is one, the existence and terms of which are manifested by conduct. Civ. Code § 1621. A contract is *either* express or implied. Civ. Code § 1619 (emphasis added). Here, by Plaintiffs' allegations, it is express – if it is a contract.

The MJOP as to this cause of action is granted.

***Third Cause of Action for Fraud –
against all Defendants and Does 1-10***

The essential elements of a claim for fraud are “(a) a misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” *In re Estate of Young* (2008) 160 Cal.App.4th 62, 79 (citations omitted).

Again, Plaintiffs allege promises by Daher and Doran Andry by K&A. [SAC, ¶¶ 94-97.] Plaintiff further allege that “Defendants” and K&A’s representations were false when made and made with the intent to induce Plaintiffs’ reliance, which the representations did. [*Id.*, ¶¶ 101-103.]

There is nothing here to connect Doe 9 (much less Doe 12) or Life is Amazing to the alleged misrepresentations.

		The MJOP to this case of action is denied as to Doran Andry but otherwise granted. <i>Fourth Cause of Action for Conspiracy to Defraud– against all Defendants and Does 1-10</i> The elements of civil conspiracy are (1) the formation and operation of the conspiracy, (2) a wrongful act done in the furtherance of the conspiracy, and (3) the resulting damage to the plaintiff. <i>Applied Equipment Corp. v. Litton Saudi Arabia Ltd.</i> (1994) 7 Cal.4th 503, 510-11. As to the formation element, two or more persons must agree on a common plan to commit a tortious act. <i>Kidron v. Movie Acquisition Corporation</i> (1995) 40 Cal.App.4th 1571, 1582. The coconspirators must have “actual knowledge that a tort is planned and concur in the tortious scheme with knowledge of its unlawful purpose.” <i>Ibid.</i> Knowledge and intent may be inferred from the circumstances, including the nature of the acts, the relationship among the parties, and the interest of the conspirators. <i>Ibid.</i> Mere suspicions without evidence will not support a showing of conspiracy. <i>Ibid.</i> Plaintiffs have alleged agreement and intent, by certain named defendants and Does 1-19. [SAC, ¶¶ 111-112.] Plaintiffs have not, however, alleged a wrongful act in furtherance by anyone but Daher and K&A. [See <i>id.</i>, ¶ 113.] The MJP to this cause of action is granted.
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	<i>Fifth Cause of Action for Theft by False Pretenses under Penal Code §496(c) – against all Defendants and Does 1-10</i> Theft by false pretenses is a criminal act against property. (a) Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170. . . . A principal in the actual theft of the property may be convicted pursuant to this section. However, no person may be convicted both pursuant to this section and of the theft of the same property. . . . (c) Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees. . . . Pen. Code § 496.
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		Plaintiffs have not alleged that moving Defendants received any of Plaintiffs' money or withheld it. Plaintiff lumps the defendants together [see SAC ¶ 124], but their allegations are that their money was paid to other defendants, not K&A. [SAC, ¶¶ 44, 46, 47, 57.] The MJOP to this cause of action is granted. <i>Sixth Cause of Action for Money Had and Received – against all Defendants and Does 1-10</i> To state common counts, a plaintiff needs to allege (1) indebtedness, (2) consideration (e.g., money had and received, work done, good sold), and (3) nonpayment. <i>Farmers Ins. Exch. v. Zerlin</i> (1997) 53 Cal.App.4th 445, 460. The elements for an action for money had and received are: (1) the defendant received money intended to be used for the benefit of the plaintiff; (2) the money was not used for the benefit of the plaintiff; and (3) the defendant has not given the money to the plaintiff. CACI 370. “A cause of action for money had and received is stated if it is alleged [that] the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff. The claim is viable wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter.” <i>Avidor v. Sutter's Place, Inc.</i> (2013) 212 Cal.App.4th 1439, 1454 (internal quote marks and citations omitted).
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	Again, Plaintiffs have not alleged that moving Defendants received money intended to be used for the benefit of Plaintiffs. The MJOP to this cause of action is granted. <i>Seventh Cause of Action for Elder Abuse – against all Defendants and Does 1-10</i> The elements of a financial elder abuse claim are: (1) defendant took/hid/appropriated/obtained/or retained plaintiff's property or assisted in same; (2) plaintiff was 65 years of age or older at the time of the conduct; (3) defendant did so for a wrongful use or with the intent to defraud or by undue influence; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. [CACI 3100.] Plaintiffs have not alleged that moving Defendants took or are retaining Plaintiffs' property. The MJOP to this cause of action is granted. <i>Eighth Cause of Action for Quiet Title – Bridgeville property, against Life is Amazing LLC, Doran Andry, and Does 1-10, inclusive</i> In an action to quiet title of real property, the complaint must be verified and include all of the following: (1) the legal description and street address of the property; (2) the basis for plaintiff's title; (3) the adverse claim or claims to title; (4) the date as of which the determination is sought; and (5) a prayer for determination of plaintiff's title against the adverse claims. Code Civ. Proc. § 760.020; <i>see also Mehta v. Wells Fargo Bank, N.A.</i>
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(S.D. Cal. 2010) 737 F.Supp.2d 1185, 1206 (stating elements).

As alleged by Plaintiffs, Life is Amazing, LLC held title to the Bridgeville property. [SAC, ¶ 154.] Plaintiffs allege the conclusion the Doran Andry, along with Life is Amazing, claims an interest in the property but does not allege how this is so.

The MJOP to this cause of action is denied as to Life is Amazing's MJOP but otherwise granted.

Ninth Cause of Action for An Accounting – against all Defendants and Does 1-10

An action for an accounting has two elements: (1) “that a relationship exists between the plaintiff and defendant that requires an accounting” and (2) “that some balance is due the plaintiff that can only be ascertained by an accounting.” (*Teselle, supra*, 173 Cal.App.4th at p. 179, 92 Cal.Rptr.3d 696; see also 5 Witkin, Cal. Procedure, *supra*, Pleading, § 820.) The action carries with it an inherent limitation; an accounting action “is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation.” (*Teselle*, at p. 179, 92 Cal.Rptr.3d 696; see also *St. James Church of Christ Holiness v. Superior Court of Los Angeles County* (1955) 135 Cal.App.2d 352, 359, 287 P.2d 387.)

An action for an accounting has been characterized as “a means of discovery.” (*Teselle, supra*, 173 Cal.App.4th at p. 180, 92 Cal.Rptr.3d

696 [“the purpose of the accounting is, in part, to discover what, if any, sums are owed to the plaintiff, and an accounting may be used as a discovery device”].) *Sass v. Cohen* (2020) 10 Cal.5th 861, 272 Cal.Rptr.3d 836, 842, (emphasis added).

While Plaintiffs again lump all the defendants together [SAC, ¶¶ 166-167], Plaintiffs have not alleged an amount due to them from any of the moving Defendants that can only be ascertained by an accounting. None of them are alleged to have received or handled Plaintiff’s money – not even Doran Andry or Life is Amazing, that the court could find. Even if one of them did receive Plaintiffs’ money for sale of the Bridgeville property, why do Plaintiffs need an accounting to ascertain the amounts due? Plaintiffs’ damages are the value of the property they were deprived of. The purchase price may be a measure of that, but this does not require an accounting.

Accordingly, the MJOP to this cause of action is granted.

***Tenth Cause of Action for Declaratory Relief
– against all Defendants and Does 1-10***

The essential elements of a declaratory-relief cause of action are (i) an actual controversy between the parties regarding contractual or property rights (ii) involving continuing acts/omissions or future consequences, (iii) which has sufficiently ripened to permit judicial intervention and resolution, but (iv) which has not yet blossomed into an actual cause of action.

	<i>See Osseous Technologies of America, Inc. v. Discoveryortho Partners LLC</i> (2010) 191 Cal.App.4th 357, 366-69. Plaintiffs seek declaratory relief as to their rights to the Bridgeville property and the other benefits promised by Daher. [SAC, ¶ 173.] Plaintiffs’ declaratory relief allegations thus essentially duplicate their prior causes of action. Code of Civil Procedure § 1061 provides: “The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” Declaratory relief is properly refused with respect to issues that can and are likely to be determined in the main/underlying action. <i>See, e.g., General of America Ins. Co. v. Lilly</i> (1968) 258 Cal.App.2d 465, 470–471. The MJOP to this cause of action is granted. <i>Eleventh Cause of Action for Promissory Estoppel – by Plaintiff Joseph Dib Against K & A Kingdom Holdings LLC, and Does 1-10, Inclusive</i> “The elements of a promissory estoppel claim are ‘(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.’ [Citation].” <i>Flintco Pacific, Inc. v. TEC</i>
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		<i>Management Consultants, Inc.</i> (2016) 1 Cal.App.5th 727, 734. “ ‘A promise which the promisor should reasonably expect to induce action or forbearance of a definite and substantial character on the part of the promisee and which does induce such action or forbearance is binding if injustice can be avoided only by enforcement of the promise.’ ” (<i>C & K Engineering Contractors v. Amber Steel Co.</i> (1978) 23 Cal.3d 1, 6, 151 Cal.Rptr. 323, 587 P.2d 1136.) The elements of promissory estoppel are: “ ‘(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by the party's reliance.’ ” (<i>Joffe v. City of Huntington Park</i> (2011) 201 Cal.App.4th 492, 513, 134 Cal.Rptr.3d 868.) <i>Jolley v. Chase Home Finance, LLC</i> (2013) 213 Cal.App.4th 872, 897, <i>as modified on denial of reh'g</i> (Mar. 7, 2013). A cause of action for promissory estoppel is basically the same as a contract action, but only missing the consideration element. <i>Yari v. Producers Guild of America, Inc.</i>, 161 Cal.App.4th 172, 182 (2008). It is a doctrine that employs equitable principles to satisfy the requirement that consideration must be given in exchange for the promise sought to be enforced. <i>US Ecology, Inc. v. California</i> (2005), 129 Cal.App.4th 887, 901-02. Because promissory estoppel is an equitable doctrine to allow enforcement of a
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	promise that would otherwise be unenforceable, courts are given wide discretion in its application. <i>Id.</i> Here, Plaintiffs have not alleged any promise by Defendant Sibannac (aka Doe 9) – the only moving Defendant targeted by this cause of action. The MJOP to this cause of action is granted. <i>Twelfth Cause of Action for Promissory Fraud -- by Plaintiff Joseph Dib Against K & A Kingdom Holdings LLC, and Does 1-10, Inclusive</i> “Promissory fraud” is a subspecies of fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.” <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 973–974; CACI 1902. “[I]n a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did <i>not really have that intent at the time that the promise was made, i.e., the promise was false.</i>” <i>Beckwith v. Dahl</i> (2012) 205 Cal. App. 4th 1039, 1059–60.
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As with the Eleventh cause of action, and for the same reasons, the MJOP to this cause of action is granted.

Thirteenth Cause of Action for Quiet Title (Tustin Property) – against K&A Kingdom Holdings, LLC and Does 1-10

In an action to quiet title of real property, the complaint must be verified and include all of the following: (1) the legal description and street address of the property; (2) the basis for plaintiff's title; (3) the adverse claim or claims to title; (4) the date as of which the determination is sought; and (5) a prayer for determination of plaintiff's title against the adverse claims. Code Civ. Proc. § 760.020; *see also Mehta v. Wells Fargo Bank, N.A.* (S.D. Cal. 2010) 737 F.Supp.2d 1185, 1206 (stating elements).

As to K&A, Plaintiffs have alleged the required elements in a verified complaint. [SAC, ¶¶ 197-207.] But they have not alleged any connection by Sibannac/Doe 9, the only moving Defendant targeted by the cause of action.

The MJOP to this cause of action is granted.

Defendants are to give notice of the ruling on the Motion for Judgment on the Pleadings.

MOTION FOR RELIEF FROM DEEMED ADMISSIONS

A propounding party may ask the court for an order that deems the matters contained in the requests for admission admitted if the receiving

	party fails to respond to the requests for admission. Code Civ. Proc. § 2033.280(b). The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with Code of Civil Procedure section § 2033.220 before the hearing on the motion. Code Civ. Proc. § 2033.280(c). This is what happened to Defendant Daher. As noted above, with its 10/10/25 order, the court deemed Daher admitted the RFAs served on him by Plaintiff. [ROA 976.] He now seeks relief from that order. Legal Standard “A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.” Code Civ. Proc., § 2033.300(a). “The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” Code Civ. Proc., § 2033.300(b); <i>Stover v. Bruntz</i> (2017) 12 Cal.App.5th 19, 30-31; <i>New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403, 1420-1421. The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:
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	(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission. (2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission. Code Civ. Proc., § 2033.300, subd. (c); see <i>Rhule v. Wavefront Technology, Inc.</i> (2017) 8 Cal.App.5th 1223, 1228-1229 (finding attorneys’ fees may be awarded under this provision). “Section 2033.300 eliminates undeserved windfalls obtained through requests for admission and furthers the policy favoring the resolution of lawsuits on the merits. [Citation.]” <i>New Albertsons, supra</i>, 168 Cal.App.4th at p. 1418 (reversing trial court’s denial of motion to amend RFA response based on counsel’s mistake in viewing photograph]). “The trial court’s discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or
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	amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits." <i>New Albertsons, supra</i>, 168 Cal.App.4th at pp. 1420-1421. In <i>New Albertsons</i>, the court recognized the statutory language of sections 473 and 2033.300 used identical terms "in two different statutes serving similar purposes." <i>New Albertsons, supra</i>, 168 Cal.App.4th at pp. 1418-1419; see <i>Carli v. Superior Court</i> (1984) 152 Cal.App.3d 1095, 1097-1099 (petitioners entitled to relief under both sections 473 and 2033 due to turnover at counsel's office). <i>New Albertsons</i> also cited to <i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227 (superseded by statute on different grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64 [discussing how, until 1989, Government Code section 946.6 had the same standard for relief as section 473 of the Code of Civil Procedure].) In <i>Elston</i>, the plaintiff filed a motion, under section 473, to set aside deemed admissions, which was the result of her attorney's failure to timely respond to the requests for admission, and which the trial court denied, resulting in successful motions for summary judgment in defendants' favor. <i>Elston, supra</i>, 38 Cal.3d at pp. 231-232. The California Supreme Court reversed the judgments in defendants' favor, holding, "based on counsel's showing of excusable neglect, the trial court should have granted the section 473 motion." <i>Elston, supra</i>, 38 Cal.3d at p. 234.
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	“Reversal of an order denying relief is appropriate where the effect of the order is to ‘defeat, rather than to advance the ends of justice.’ [Citation.] Accordingly, the trial court abused its discretion in denying plaintiffs’ section 473 motion.” <i>Id.</i> at 236. Discussion Daher brought his motion for relief under Code of Civil Procedure section 437(c) rather than section 2033, but since the standards are the same it is appropriate for the court to proceed to the merits of the motion. Daher declares that he did not respond to the RFAs or oppose the motion because he thought the May 2025 settlement talks had been successful -- he had signed the settlement agreement -- and did not know until November 2024 that Plaintiffs’ counsel had called the settlement off. [Daher Decl. (ROA #1137), ¶¶ 3-8 and Ex. A.] After that, he served responses. [<i>Id.</i>, ¶¶9-10 and Ex. C.] Plaintiffs’ counsel disputes that settlement negotiations began in May, that there was a settlement, or that she was served with Daher’s RFA responses, or was even contacted by him. [M. Dib Decl. (ROA #1254), ¶¶5, 6, 8, 11, 12.] Plaintiffs also object that Defendant Daher’s motion for relief was not signed within 6 months of issuance of the order in question.
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	Unlike Code of Civil Procedure section 437(c), section 2033.300 does not include a six month limit for the motion to be brought. This is a contentious case with much acrimony and accusations among and between counsel and the parties. Considering everything, the court finds Daher has stated a ground for relief and grants his motion for relief. Defendant Daher shall give notice of this ruling. <u>MOTION TO QUASH SUBPOENAS</u> Plaintiffs R & R Life is Amazing LLC and Joseph Dib's ("Plaintiffs") Motion to Quash Three Subpoenas For Bank Records, For A Protective Order As To Personal Bank Records of Plaintiffs' Counsel, And For Monetary Sanctions, is granted. Plaintiffs move to quash the deposition subpoenas served by Defendants Mariam Daher, Sad Thaher, Deegia Investments LLC, K & A Kingdom Holdings, LLC, and Omar Hajjawi dba Club Vapor USA (hereinafter, the "Defendants"), on three non-party banks, Citibank, Morgan Chase, and BMO (formerly known as Bank of the West). Plaintiffs also seek a protective order for any personal bank records and personal information concerning their counsel of record in this action, Monica Dib. The Court grants the request to quash the subpoenas. (Code Civ. Proc., § 1987.1, subd. (a).) The Court notes that it already quashed three nearly identical subpoenas on 10/3/25. (ROA 967 [10/03/25 Minute Order].) Defendants did not
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	challenge that ruling. Thus, for the reasons previously explained in the prior ruling, the Court quashes the subpoenas, again. The Court grants Plaintiffs’ request for a protective order, as it appears necessary to address Defendants’ repeated conduct of attempting to obtain Plaintiffs’ counsel’s personal records without proper notice and without the showing necessary to obtain such information. (Code Civ. Proc., § 2025.420, subd. (b)(1), (b)(5).) Because such information is not considered a “traditionally public source of information,” there is no First Amendment concern on putting this restraint on pretrial discovery. (<i>Seattle Times Co. v. Rhinehart</i> (1984) 467 U.S. 20, 32; Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:681.) The Court hereby orders that, in this action, Defendants shall not be permitted to serve a deposition subpoena for the production of Ms. Dib’s personal records without first seeking leave of court. In connection with this motion, the Court awards \$2,794 in reasonable monetary sanctions in favor of Plaintiffs, and against Defendants Mariam Daher, Sad Thaher, Deegia Investments LLC, K & A Kingdom Holdings, LLC, and Omar Hajjawi dba Club Vapor USA, and their counsel of record, Law Office of Lawrence Hoodack, jointly and severally. (Code Civ. Proc., § 1987.2, subd. (a).) The sanctions are payable within 30 days to Law Office of Monica C. Dib. Plaintiffs shall give notice of this ruling.
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		<u>MOTION FOR JOINDER</u> This motion is granted to the extent joinder is necessary given that Sibannac was timely added as a moving party by way of the amended notice. [ROA #1234.] Defendant Sibannac is to give notice of this ruling.
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